

VICTIM OF LAST YEARS FLU PLAGUE SUCCUMBS SATURDAY

Mrs. Ricard, Who Suffered From Influenza Last Winter, Dies Here on Saturday

Mrs. Irene Ricard, daughter of Mrs. Helen Daugherty, died at her home at Fourteenth and Center streets Saturday afternoon at 12:20 o'clock from heart failure, result of influenza suffered about a year ago in this city.

Mrs. Ricard came to Oregon City several years ago from Texas, where she spent most of her life. Shortly after arriving in Oregon City, she accepted a position as bookkeeper and stenographer for the Burmeister & Andersen jewelry store, but was forced to resign her position a few months ago owing to her poor health, and left for California, for the benefit of her health.

Returning to Oregon City with her mother and young son a few weeks ago, she took up her residence at Fourteenth and Center streets. Her health grew steadily worse until her death this afternoon.

Since arriving in Oregon City Mrs. Ricard has been an active member of the St. Paul's Episcopal church and also of the Willamette Rebekah lodge.

Mrs. Ricard is survived by her mother, Mrs. Helen Daugherty, of this city; a son, Jefferson Ricard, also of Oregon City; two brothers, Hugh Stewart, of San Antonio, Texas; Jefferson Stewart, of San Jose, and a sister residing in California. Mrs. Ricard was a second cousin of Mrs. J. W. Church and Mrs. W. W. Allredge and T. P. Randall, of this city.

Nut Growers Are Successful

F. Neiderhauser, of Redland, one of the prominent nut growers of Clackamas county, was in Oregon associated with his brother, W. Neiderhauser, in growing Franquette walnuts, and have been very successful in the industry. This year's crop averaged 275 pounds of excellent variety of nuts, and Mr. Neiderhauser says he believes that next year he will at least average a ton from his trees.

Even years ago the brothers planted their first nut trees, and among these were chestnut trees, but owing to the pest that has visited the chestnut trees, a large number of these have been killed. They have been replaced by walnut trees, and it is the intention of the growers to replace every tree that is killed by the pest known as the sour sap, when an insect appears and bores into the spot affected. These men have found that walnut industry can be carried on in Clackamas county most successfully if proper methods are followed.

Mr. Neiderhauser says the chestnut trees have become affected more than the walnut trees, the latter of which are sound and with prospects of raising many more large crops. There are 210 walnut trees, ranging from one year up to eleven years.

Brady Mercantile company's store purchased 165 pounds of the Franquettes, and Dr. Roy Prudden about 50 pounds. The wholesale price was 35 cents per pound. Dr. Prudden has sent the nuts he purchased to Portland to relatives.

The Franquettes brought to this city by the Neiderhauser brothers are among the finest that have ever been marketed in the local stores.

SCENIC ROAD COMPLETED

The road leading from Mount Pleasant to Mountain View, known as Holmes avenue, is now completed with a good 16 foot rock surface. It is now one of the best and most picturesque drives in the county.

This is a road which has been almost impassable for many years. Several attempts have been made to have it improved but all failed until last spring Ward B. Lawton took up the matter and through his efforts the road is now completed.

Lady Astor Talking to Children During Her Campaign for Seat in Parliament



BOTH SIDES IN HAWLEY CASE ACT SATURDAY

Developments in the Hawley divorce case followed each other in quick succession Saturday afternoon. Willard P. Hawley, Jr., the defendant, filing a motion to annul Judge Campbell's order ordering him to pay into the court \$500 suit money, \$7500 attorney fee and \$1000 temporary alimony.

He contends that the order of the court is in effect taking his property from him without due process of law and that the court had no jurisdiction as no summons had been served upon him prior to the issuance of the order. The defense also filed a motion to make the complaint more definite and certain, and asking that the plaintiff be required to give the dates on the alleged mistreatment complained of, and to give the names of the plaintiff's "hired help," in the presence of whom the alleged acts of the defendant occurred.

Later in the day Mrs. Willard Hawley, Jr., filed an affidavit alleging that her husband's parents, Mr. and Mrs. Willard P. Hawley, Sr., have continuously resided at her home since the original suit was filed; that their conduct has been obnoxious and insulting; that her husband has said that her baby would be taken from her, and she has asked for an order enjoining her husband's parents from coming upon the premises.

Mrs. Hawley, Jr., also presented an affidavit charging her husband with having served notice on various persons that he would not be responsible for her purchases; that he has stated he would keep the case in court for three years; that his father has asserted he would spend his last nickel in fighting the case; that Mr. Hawley, Sr., is worth upwards of \$1,500,000 and is assisting his son in fighting her suit; that her husband receives a salary of \$1,000 a month from the Hawley Pulp & Paper Co., and that his income is around \$50,000 a year. She asks for an additional \$500 a month temporary alimony, and an additional \$500 as suit money and an additional \$2500 for attorney fee.

In the original order Mr. Hawley, Jr., is restrained from disposing of his stock in the Hawley Pulp & Paper Co., and application is also made to set this order aside. The several motions will be argued before a judge of the Circuit Court here, sitting in place of Judge J. U. Campbell, who will step aside upon an affidavit of prejudice filed by Mr. Hawley several days ago. Grant B. Dimick and Griffith, Leith & Allen appear for Hawley, whose wife is represented by C. Schuebel.

Subpoenas have been asked for Theodore Osmund, secretary of the Hawley Pulp & Paper company and for W. P. Hawley, Sr., and W. P. Hawley, Jr., to appear in court on December 6 for the purpose of giving depositions in the case. Mr. Osmund is to be asked to produce records of the company to show that dividends were paid to stockholders of the company.

Hawley, Jr., is cited to bring with him his bank books, especially those showing his deposits in the Ladd & Tilton bank of Portland, while the father is asked to bring such records as will show the earnings of the paper company.

As a result of the filing by the defendant several days ago of his affidavit of prejudice asking for a change in the judge to hear the case, Judge George R. Bagley, circuit judge for Washington county, residing at Hillsboro, will sit in the place of Judge J. U. Campbell, who was set aside by reason of the affidavit of prejudice.

SAYER ACQUITTED

SPRINGFIELD, Mo., Nov. 29.—Robert Hicks, the 85 year old farmer who confessed to the police in Chehalis, Wash., some months ago that he had murdered his 18 year old daughter at their home near Urbana, Mo., 25 years ago, was acquitted at the trial in the circuit court at Hermitage, Hickory county, it was learned here today.

Modern Circuit Rider Uses Flivver

"THE KING'S BUSINESS REQUIRES HASTE"



CIRCUIT RIDING—OLD AND NEW

The twentieth century circuit rider who has congregations scattered over from ten to fifty square miles of territory does not travel from place to place on horseback. Instead he makes use of two of the latest methods of transportation, impossibly faster than the slow pace of a horse and put-put. He either mounts a motorcycle and put-puts his way from one village to another or climbs into a moderate priced automobile and whisks about. Probably the only reason why he does not use an airplane is because his congregations refuse to have him risk his life by becoming a "sky pilot" literally as well as figuratively.

The number of strictly up-to-date circuit riders will be greatly increased as a result of the National Campaign of the Episcopal Church. In the surveys of the needs of the various parishes and dioceses returned to the general headquarters of the National Campaign at 124 East 28 Street, New York City, many requests have been included asking for aid

in buying motorcycles and automobiles that the effectiveness of the rector in the sparsely populated sections of the country may be increased many times.

The Right Rev. Hugh L. Burleson of Sioux Falls, S. D., Episcopal Bishop of South Dakota, in including the item of automobiles in the survey for that diocese says: "A priest with a machine can do just four times the work out here as a priest without one."

The Right Rev. Clinton L. Quin, Bishop Coadjutor of Texas, with headquarters in Houston, asks for automobiles for the clergymen in his diocese as does Archdeacon Garner of Amarillo for the Diocese of North Texas. There the territory in charge of each clergyman is large and the distances he has to cover so great that it is deemed indispensable that he be supplied with motor transport.

The Right Rev. James Wise, Bishop of Kansas, wants motorcycles instead of automobiles for a number of his clergy. With them he will be able to supply a preacher

for a number of small towns within sixty miles of Topeka every Sunday.

The Right Rev. Frank Hale Tourret, Bishop of Western Colorado, also asks for automobiles while the Right Rev. Paul Matthews of the Diocese of New Jersey wants, in addition to motor cars, a motor truck large enough to transport a priest with all the accessories needed for holding any kind of a religious service—communion, funeral, morning prayer or wedding—so that out of the way communities in southern New Jersey may enjoy the religious advantages of more populous communities.

As a result of the National Campaign, which is to raise both money and workers for the expansion of all Episcopal activities, the dealers in automobiles, motorcycles and gasoline will find a new customer for their wares and one whose trade is entirely likely to keep on expanding as the vestries learn how much modern means of transportation add to the amount of work which their rectors can accomplish.

PERMIT TO REPAIR IS GIVEN BY COUNCIL

Stevens & Howell will be permitted to repair their burned building in the center of the business district, according to the mandate of the committee on fire and water at a public hearing in the council chamber Saturday night. It was stated that the lower story of the building is practically intact and that a rubberoid roofing will be placed over it, making the building a single story structure.

Mr. Stevens stated very emphatically that he would not erect a brick building under present conditions. He explained that the structure was under lease to W. B. Eddy for another three years, and that rentals in Oregon City do not justify the erection of good buildings.

He said net returns on such structures as the Beaver building, in which he formerly had a half interest, were less than 6 per cent; that his money was largely in government bonds, which he would have to sacrifice if he should dispose of them at the market, placing his possible loss at \$2065. W. H. Howell declared that he had the estimate of Councilman Krueger, a contractor, that the building which they proposed to repair could not be erected today for less than \$12,000, and it was stated that the plate glass in the building is worth \$1000 and the store shelving \$300.

E. G. Caulfield cited his recent experience in building repair, and insisted that the owners of the Stevens & Howell building would not be justified in erecting a permanent structure at this time. Mr. Caulfield said the fire limit ordinance is faulty, and suggested that the council should enact an ordinance that would hold water.

He asserted that the fire and water committee had no right, under the ordinance, to refuse a permit for the repair of the building, and all of the members of the committee agreed with him.

J. E. Hodges eulogized Mr. Stevens and Mr. Howell as citizens of sterling qualities, being, he said, the very foundation of the town. He deprecated the extravagance of the young people and commented the saving habits of the owners of the building in controversy.

Councilman Charles W. Kelly and E. J. Noble argued in favor of permitting the repair, and the latter quoted from the city records to show that in only a relatively small number of instances had the fire limit ordinance been complied with.

C. Schuebel, representing the Live Wire committee, urged the committee to insist upon strict compliance with the ordinance and said that better buildings should be erected along the main street of the city. He referred to the new \$300,000 bridge near by, as comparative evidence of civic progress. George Randall spoke of the fire risks involved from a frame structure and said the application for repair should be denied. A. G. Beattie

Chairman Bridges, of the fire and water committee, said he believed the committee had no discretion in the matter, but under the provisions of the city ordinance, would be compelled to issue a permit. John R. Bowland asked the committee if that meant he could build a new wooden sidewalk, and he was assured that he might, if he got a permit. Mr. Beattie called the attention of the committee to danger of establishing a precedent and said it was no argument that because the ordinance had been ignored in the past that compliance should be evaded in the future.

Mrs. Swigert Struck by Skidding Car

Mrs. W. F. Swigert of Gladstone, was seriously injured on Main street Friday morning when she was struck by a car driven by Richard McGarrity of Glen Echo. Mrs. Swigert was crossing the street when the car, owing to the slippery condition of the pavement, although protected with skid chains, skidded. The car struck Mrs. Swigert and knocked her down. She was taken to Dr. M. C. Strickland's office where upon examination it was found that she had received an ugly gash on the head and one limb was broken badly. She was taken in the afternoon to St. Vincent's hospital in Portland where the leg was set.

Dr. Strickland said Friday night that he could not tell as yet whether or not there were serious internal injuries. Otherwise the patient was resting comfortably.

DISTRICT ONE FAILS TO VOTE ROAD TAX LEVY

Out of the 11 road districts, exclusive of the incorporated cities in Clackamas county, 10 of them made special tax levies of 10 mills at district meetings Friday. Ten mills is the maximum tax that may be levied by a road district as a special levy.

The lone district refusing to levy a special tax for its roads is District No. 1, formed of the old districts Nos. 1, 38 and 47. This district vote almost solidly against the road bond measure appropriating \$1,700,000 for paving county roads last week at a special election, on the ground that none of the funds appropriated were to be expended within the boundaries of that district.

With only a few dissenting votes a resolution, presented by Harvey G. Starkweather, was adopted, providing for the appointment of nine taxpayers to go before the county court and request that the former district boundaries be established. Mr. Starkweather is chairman of the committee. Under the law the court cannot change district boundaries except at the September term. The action of the taxpayers of district No. 1 in refusing to vote a special tax will mean that little money will be available for roads in that section next year.

CHIEF IS SICK
PORTLAND, Dec. 1.—Chief of Police L. V. Jenkins is confined to bed today at his home, 54 Marguerite avenue, suffering from gallstones.

Highway Bridges

While it must be admitted that \$1,700,000 is a lot of money, we should not overlook, in our enthusiasm over the road bonds, that thousands of dollars are being expended in Clackamas county under the immediate direction of the state highway department in the improvement of the Pacific Highway from the Marion to the Multnomah county line.

Four modern bridges will mark this highway through Clackamas, the main structure being across the Willamette river between Oregon City and West Linn, another spanning the Molalla at Canby, a third being a new concrete arch over Sucker creek on the new location near Oswego, and the fourth is a wooden bridge over Tryon Creek not far from the Multnomah line.

The Columbia river highway bridges are known far and wide for their substantial construction and for the beauty of their architecture and our own bridges in this county will be of pleasing design. The day of ugly, covered wooden bridges is past, and the angular lines of the country steel bridge had nothing to commend them.

Clackamas is entering upon a new era. Her roads will be paved, her bridges will be beautiful, and her people will be contented.

NINE OUT OF THE TEN DISTRICTS VOTE LEVY

Only one road district of the county failed to pass the 10 mill special tax levy at road district meetings held in all eleven districts of Clackamas county Friday afternoon beginning at 1 o'clock. The one district which failed to vote this special levy was road district No. 1, which comprises that section of the county lying north of the Clackamas river and between Oregon City and Portland.

It was this section of the county at the special road bond election held last Monday for the purpose of voting bonds in the amount of \$1,700,000 to build paved roads in all sections of the county which were not already supplied with such roads—it was road district No. 1 in this section on Monday which rolled up a heavy majority against the bond issue while all other sections voted sufficiently strong for the bonds to carry the issue with a majority of better than 900.

Part of the bond proposition voted on last Monday provided that at these district meetings held on Friday the districts should vote a special levy to raise money for individual district road needs and for the further purpose of preparing the base upon which to lay the hard surface of the main system of highways to be constructed under the bonding plan.

These district meetings were to also elect three men of each district to act in an advisory capacity throughout the road building regime with the county court.

The Enterprise prints in this issue the returns of the road district meetings with the exception of the meeting held at Monitor which is in road district No. 11. Repeated efforts were made to secure this information throughout Friday evening but the telephone lines to Monitor were reported out of commission as a result of the recent changes in the weather and no one could be secured in the Monitor district. It is altogether probable that the result of this meeting was similar to those held in other sections of the county.

The results of the other meetings is as follows:

District No. 1, 17 votes for the 10 mill special tax and 113 votes against it.

District No. 2, 80 for the levy and 26 no. One-half mill of the 10 mills is to be expended on a road other than the highway in the Pleasant Hill section of the district. The committee appointed, was composed of Z. Erickson, B. F. Weddle and W. M. Schatz. This district lies in the Wilsonville section of the county.

District No. 3, 160 for and 23 no. The 10 mill tax will raise \$26,500 in the district. The committee elected R. E. Wark, W. R. Telford and H. Seifert. This district is in the Damascus section.

District No. 4, 73 for and 17 no. This will raise about \$19,000 by the levy. The committee is Mr. Miller of Barton, Mat Glover of Eagle Creek and Adolph Miller of George. This district lies near Estacada.

District 5, 106 for and 8 no. The levy will raise about \$14,000. The committee is James Shibley of Springwater, C. M. Tracey of Logan, and E. L. Pope of Parkplace. This district is known as the Springwater and Logan district.

District No. 6, 54 for and 5 no. The levy will raise about \$8000. The committee is James Fulam, Wm. Black and Ed Leek. This is the Abernathy district.

District No. 7, 204 for and 24 no. The levy will raise about \$12,000. The committee is Max Stricker of Highland, Bat Sullivan of Clarke and C. E. Snence of Beaver Creek. This is the Beaver Creek section.

District No. 8, 51 for and 38 no. The levy will raise about \$10,100. The committee is William Randall, Herman Fischer and L. E. Bentley. This district includes Mount Pleasant neighborhood.

District No. 9, 95 for and 7 no. The committee is T. O. Riding, C. J. Renhart and George Koehler. This district lies in the Molalla section of the county.

LEE YOUNG OF HIGH SCHOOL WRITES GOOD IRISH BALLAD

Lee Alvan Young, an Oregon City lad and a fifteen year old freshman in our high school, has written a song called: "Till Marry O'Dugan's Daughter and Run O'Dugan's Store." We believe that this song will have a great sale in Oregon City as well as all the rest of the country in general. The theme of his song, as can readily be told by the title, is of an Irish character.

A young man has a thriving business in a small town called Morrow. Then O'Dugan, who has a beautiful daughter, comes to town. He starts up a business across the street from the young store keeper, and, having such a pretty daughter, soon draws all the trade to his own store.

The young fellow soon falls in love with his opponents daughter, as all the rest of the rubes in that part of the country have done. And, as the author expresses it:

"I used to stand and watch the rubes go in his dinky store.

And chatter with his daughter 'Till it used to make me sore."

The young store keeper soon decides to ask O'Dugan's daughter to marry him. It does not tell in the song whether he does or not but says that he "knows she'll answer 'sure'."

The title page is a beautifully colored picture of a young lady, and, if the engraving is that of O'Dugan's daughter, it is no wonder that the young store keeper, as well as the other rubes, fell in love with her.

Every one that has heard Mr. Young's song declare it to be the "best ever", and predict a great future for it as well as the young author.

Official Canvass of Bond Vote Made

The board of canvassers for Clackamas county met in the office of the county clerk here Saturday and made an official canvass of the vote in the special bond election held on Monday, November 24 in this county at which time the people voted to issue bonds to the amount of \$1,700,000 to be expended in constructing hard surfaced roads throughout the county.

The members of the board of canvassers were Louis Stipp, Justice of the peace for Oregon City, William A. Moran, postmaster at Boring and County Clerk Fred A. Miller. The board announced that the bonds had been carried by the following vote: There were 3953 votes for the bonds and 3071 against them. The majority was 882 for the bonds.

District No. 10, 95 for and 25 no. The levy will raise about \$12,000. The committee is Roy Riding, L. D. Joseph and Albert Gribble. This district lies near Marquam.

It was impossible to secure the returns from the meeting held in the Monitor section.

There was another special meeting held Friday afternoon. This meeting was held in the city hall of Canby. The taxpayers present voted a special tax levy of 5 mills. This levy will raise about \$1600. The voters recommended to the county court that this money be used to purchase from the Southern Pacific railroad a right of way through the city of Canby for the Pacific highway.

In the event the money is not used for this purpose then the voters wish the money used on the construction of the highway where needed.

Still another meeting was held. This one was in the city hall of Sandy at 2 o'clock. The taxpayers voted a 10 mill special levy to be used on the streets of Sandy and the meeting also recommended to the county court the appointment of John Maroney of Sandy as road supervisor for the city of Sandy.

Wealthy Young Man Whose Body Has Been Exhumed in Search for Traces of Poison



Thomas Ryerson, Jr.

Following a demand made to the prosecutor of Middlesex county, N. J., by Thomas Ryerson, Sr., of New Brunswick, the body of his son, Thomas Ryerson, died suddenly in April. The determine whether he died a natural death or as the result of poisoning.

Ryerson died suddenly in April. The internal organs are being analyzed. Ryerson was a wealthy young salesman for a New York lock and safe company. The widow has announced that she welcomes an investigation.